

26NWCV02419 26NWCV02419

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 26NWCV02419 Hearing Date: August 13, 2026 Dept: P

Ceja, et al. v. Salguero,

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This motor vehicle-personal injury action was filed on July 21, 2026. Plaintiffs Salvador Rodríguez Ceja, Graciela Gonzalez Vargas, and Adriana Rodríguez Gonzalez (Plaintiffs) now apply ex parte for the fifth time for a nunc pro tunc order to backdate the filing date of their complaint.

Counsel for Plaintiffs James A. Allaire states: "July 1, 2026, my office e-filed the Summons and Complaint in this lawsuit via One-Legal... On July 2, 2026, we received electronic confirmation that the documents were successfully submitted. The confirmation status stated: 'E-Filing under Court Clerk Review.'" (Allaire Decl., ¶ 3.) Mr. Allaire states that on July 7, 2026, the filing was rejected due to a clerical mismatch in the names. (Allaire Decl., ¶ 7.)

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).) "[A] paper is deemed filed when it is deposited with the clerk with directions to file the paper." (Rojas v. Cutsforth (1998) 67 Cal.App.4th 774, 778.) When a filing has an insubstantial defect, "the clerk should file the complaint and notify the attorney or party that the perceived defect should be corrected at the earliest opportunity." (Id., at p. 777.) Examples of such defects include failing to submit a form required by local rules and listing the wrong courthouse or division. (Id., at p. 777-778.)

Here, Plaintiffs provide a confirmation by OneLegal reflecting an attempted filing by Plaintiffs to OneLegal, a court-approved filing service, at 5:35 PM on 7/1/2026. (Allaire Decl., Exh. A.) Plaintiffs attest that this action was timely filed with a Court-approved filing company, the action was not given a case number upon rejection, and that the delay in re-filing was due to delays in getting the rejections and inadvertence. (Allaire Decl., ¶ 3-9.)

Accordingly, Plaintiffs' ex parte application is GRANTED. This action is nunc pro tunc deemed filed on July 2, 2026.

Moving party to give notice.